



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name: Erick Bermudez

Employee ID #:

Hire Date: 1/18/22

1. For Accounting to do prior to New Hire starting:

- ✓ Set up Computer Profile, Windows Login
- ✓ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ✓ Set up Inform-ERP System
- ✓ Set up Johnstone Employee Network (JEN/JXI)
- ✓ Set up Voicemail (Extension)
- ✓ Add to Phone List
- ✓ Set up as User in Address Book in Copiers & Printers
- ✓ Set up in Johnstone University- JU Online
- ✓ Set up Johnstone Email
- ✓ Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ✓ Sign Offer Letter
- ✓ Application
- ✓ Sign Job Description
- ✓ New Hire Form/Employee Information Form
- ✓ Pay Rate Acknowledgement-2 copies
- ✓ W4 Tax Withholding Form
- ✓ IT-2104 Employee's Withholding Allowance Certificate
- ✓ Post-Offer Self-Identification Form
- ✓ I-9 Eligibility Form
- ✓ Direct Deposit Form
- ✓ Benefits Overview
- ✓ Receipt of Handbook
- ✓ Receipt of Non-Harassment Policy
- ✓ Receipt of Sexual Harassment Prevention Policy & Complaint Form
- ✓ Receipt of Smoking Policy
- ✓ Receipt of Confidentiality Policy
- ✓ Authorization to Deduct Expenses



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✓ Employee Account Information

3. HR will hand Employee during orientation:

- ✓ Employee Handbook
- ✓ Copy of Benefits Overview
- ✓ New Health Insurance Marketplace Coverage
- ✓ COBRA General Notice
- ✓ Allworx Voicemail Greetings Setup Guide
- ✓ Payroll Schedules
- ✓ Copy of Pay Rate Acknowledgement Form
- ✓ Copy of Job Description
- ✓ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ✓ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ✓ Set up in Payroll and Time & Attendance
- ✓ Add to Org Chart
- ✓ Scan New Hire paperwork and Save to Online Employee File
- ✓ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ✓ File Form I-9 in Active Forms I-9 Folder
- ✓ File Background Check forms and information in the Background Check File
- ✓ Add Employee to Payroll File and Commission/Bonus File online



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January 10, 2022

Erick Bermudez
135 Parkwood Road
Rochester, NY 14615

Erickbermudez96@yahoo.com

Dear Erick:

I am pleased to offer you the position of Warehouse Delivery Driver for Johnstone Supply-The Wallace Group. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to Jaime Burgos as your Warehouse Supervisor. Your tentative start date is scheduled for Tuesday, January 18, 2022.

This is a full-time, nonexempt position eligible for overtime pay after 40 hours worked in a workweek at 1.5 times your regular hourly rate. We are offering you a starting base wage of \$20.00 per hour paid biweekly according to Johnstone Supply of Central NY's payroll practices.

Upon the successful completion of your 90-day probationary period you will become eligible for several employment benefits as outlined on the accompanying Benefits Overview.

This job offer is contingent upon the following:

- Satisfactory reference checks.
- Completion of a satisfactory background check.
- Motor vehicle check/MVR.

On your first day, you will be given an orientation by Human Resources. This orientation will include completing employment forms, reviewing fringe benefits, introduction to management and touring the premises. Please bring appropriate documentation for the completion of your new-hire forms, including proof that you are presently eligible to work in the United States for I-9 Form purposes. Failure to provide appropriate documentation within three days of hire will result in immediate termination of employment in accordance with the terms of the Immigration Reform and Control Act.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than Monday, January 17, 2022. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Erick, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.



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Welcome to JOHNSTONE SUPPLY!

Sincerely,

Stephen Short, Branch Manager

Stephen.Short@johnstonehvac-ny.com

Attachments: Job Description, Benefits Overview, Driver Information Request, List of Acceptable Documents for Form I-9, Background Authorization

I have read and understood the provisions of this offer of employment, and I accept the above conditional job offer. I understand that my employment with Johnstone Supply of Central NY is considered at will, meaning that either the company or I may terminate this employment relationship at any time with or without cause or notice.

This offer shall remain open until Monday, January 17, 2022. Any acceptance postmarked after this date will be considered invalid.

Date: 1/11/22

Print Name: Erick Bermudez

Signature: 

Please Print Clearly

APPLICATION FOR EMPLOYMENT

Company Name Johnstone Date 1/18/22

Please Answer All Questions. Résumés Are Not A Substitute For A Completed Application.

We are an equal opportunity employer. Applicants are considered for positions without regard to veteran status, uniformed servicemember status, race, color, religion, sex, national origin, age, physical or mental disability, genetic information or any other category protected by applicable federal, state, or local laws.

For Rhode Island Employers Only: This Company is subject to the Workers' Compensation laws of the State of Rhode Island.*

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE.

Applicant Name Erick Bermudez Position Applied For Driver (list only one)

Telephone Number (585) 746 - 0493 Alternate/Cellular Telephone Number () - -

Present Address 135 Parkwood Rd

Street, Apartment, or Unit Number

Rochester NY 14615 How long have you lived there 2 / 3 Years/Months
City State Zip

Email Address (optional) ErickBermudez94@yahoo.com

If under the age of 18, can you produce the necessary work certificate at the time of employment? Yes ☐ No ☒

Type of employment desired? Full-time ☒ Part-time ☐ (Specify Hours) _____

Are you willing to work overtime? Yes ☒ No ☐ Date on which you can start work if hired 1/18/22

Have you previously applied for employment with this Company? Yes ☐ No ☒

If Yes, when and where did you apply? _____

Have you ever been employed by this Company? Yes ☐ No ☒

If Yes, provide dates of employment, location and reason for separation from employment. _____

If applicable, below list any other names by which you have been known which may be necessary to allow us to confirm your work and educational record. For example, change of name, use of an assumed name, nickname, etc.

Education	School Name and Location (Address, City, State)	Course of Study or Major	Graduate? Y or N	# of Years Completed	Honors Received
High School	Edison Tech	Mason	Y	4	
College	Edinboro Univ	N/A	N	1	
Graduate/ Professional					
Trade or Correspondence					

WORK EXPERIENCE

Please list the names of your present and/or previous employers in chronological order with present or most recent employer listed first. Provide information for at least the most recent ten (10) year period. Attach additional sheets if needed. If self-employed, supply firm name and business references. You may include any verifiable work performed on a volunteer basis, internships, or military service. Your failure to completely respond to each inquiry may disqualify you for consideration from employment. Do not answer "see résumé."

Employer

Name	Address	Type of Business
-------------	----------------	-------------------------

Telephone (____) _____ Dates Employed From ____/____/____ To ____/____/____

Job Title _____ Duties _____

Supervisor's Name _____ May we contact? ☐ Yes ☐ No If No, why not? _____

Reason for Leaving? _____

What will this employer say was the reason your employment terminated? _____

Were you ever disciplined? If so, for what? _____

How much notice did you give when resigning? If none, explain. _____

Employer

Name	Address	Type of Business
-------------	----------------	-------------------------

Telephone (____) _____ Dates Employed From ____/____/____ To ____/____/____

Job Title _____ Duties _____

Supervisor's Name _____ May we contact? ☐ Yes ☐ No If No, why not? _____

Reason for Leaving? _____

What will this employer say was the reason your employment terminated? _____

Were you ever disciplined? If so, for what? _____

How much notice did you give when resigning? If none, explain. _____

Have you ever been terminated or asked to resign from any job? ☐ Yes ☐ No If Yes how many times? _____

Has your employment ever been terminated by mutual agreement? ☐ Yes ☐ No If Yes how many times? _____

Have you ever been given the choice to resign rather than be terminated? ☐ Yes ☐ No If Yes how many times? _____

If you answered Yes to any of the above three questions, please explain the circumstances of each occasion.

REFERENCES [Optional]

Please list the names of additional work-related references we may contact. Individuals with no prior work experience may list school or volunteer-related references.

NAME	POSITION	COMPANY	WORK RELATIONSHIP (i.e. supervisor, co-worker)	TELEPHONE

Please list the names of personal references (not previous employers or relatives) who you know that we may contact.

NAME	OCCUPATION	ADDRESS	TELEPHONE	NUMBER OF YEARS KNOWN

DRIVING INFORMATION [Optional] (Complete only if driving is an essential function of the job for which you are applying).

Do you have a current valid driver's license? ☐ Yes ☐ No If yes, License No.: _____ State: _____

Expiration Date: _____

If you do not have a driver's license for the state in which you currently reside, why not?

Has your license ever been suspended or revoked? ☐ Yes ☐ No

If yes, explain:

Do you have personal automobile insurance? ☐ Yes ☐ No

If no, explain:

Have you ever been denied personal automobile insurance or has it ever been terminated or suspended? ☐ Yes ☐ No If yes, explain:

Please list all moving traffic violations in the last five (5) years:

OFFENSE	DATE	LOCATION	COMMENTS

APPLICANT CERTIFICATION

I understand and agree that if driving is a requirement of the job for which I am applying, my employment and/or continued employment is contingent on possessing a valid driver's license for the state in which I reside and automobile liability insurance in an amount equal to the minimum required by the state where I reside.

I understand that the Company may now have, or may establish, a drug-free workplace or drug and/or alcohol testing program consistent with applicable federal, state, and local law. If the Company has such a program and I am offered a conditional offer of employment, I understand that if a pre-employment (post-offer) drug and/or alcohol test is positive, the employment offer may be withdrawn. I agree to work under the conditions requiring a drug-free workplace, consistent with applicable federal, state, and local law. I also understand that all employees of the location, pursuant to the Company's policy and federal, state, and local law, may be subject to urinalysis and/or blood screening or other medically recognized tests designed to detect the presence of alcohol or illegal or controlled drugs. If employed, I understand that the taking of alcohol and/or drug tests is a condition of continual employment and I agree to undergo alcohol and drug testing consistent with the Company's policies and applicable federal, state, and local law.

If employed by the Company, I understand and agree that the Company, to the extent permitted by federal, state, and local law, may exercise its right, without prior warning or notice, to conduct investigations of property (including, but not limited to, files, lockers, desks, vehicles, and computers) and, in certain circumstances, my personal property.

I understand and agree that as a condition of employment and to the extent permitted by federal, state, and local law, I may be required to sign a confidentiality, restrictive covenant, and/or conflict of interest statement.

I certify that all the information on this application, my résumé, or any supporting documents I may present during any interview is and will be complete and accurate to the best of my knowledge. I understand that any falsification, misrepresentation, or omission of any information may result in disqualification from consideration for employment or, if employed, disciplinary action, up to and including immediate dismissal.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE. NOTHING IN THIS APPLICATION OR IN ANY DOCUMENT OR STATEMENT, WRITTEN OR ORAL, SHALL LIMIT THE RIGHT TO TERMINATE EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE OR REPRESENTATIVE OF THE COMPANY IS AUTHORIZED TO ENTER INTO AN AGREEMENT—EXPRESS OR IMPLIED—WITH ME OR ANY APPLICANT FOR EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME UNLESS SUCH AN AGREEMENT IS IN A WRITTEN CONTRACT SIGNED BY THE PRESIDENT OF THE COMPANY. IF HIRED, I AGREE TO CONFORM TO THE RULES AND REGULATIONS OF THE COMPANY, AND I UNDERSTAND THAT THE COMPANY HAS COMPLETE DISCRETION TO MODIFY SUCH RULES AND REGULATIONS AT ANY TIME, EXCEPT THAT IT WILL NOT MODIFY ITS POLICY OF EMPLOYMENT AT-WILL.

I authorize the Company or its agents to confirm all statements contained in this application and/or résumé as it relates to the position I am seeking to the extent permitted by federal, state, or local law. I agree to complete any requisite authorization forms for the background investigation which may be permitted by federal, state and/or local law. If applicable and allowed by law, I will receive separate written notification regarding the Company's intent to obtain "consumer reports."

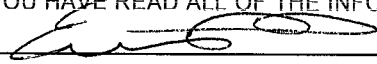
I authorize and consent to, without reservation, any party or agency contacted by this employer to furnish the above-mentioned information. I hereby release, discharge, and hold harmless, to the extent permitted by federal, state, and local law, any party delivering information to the Company or its duly authorized representative pursuant to this authorization from any liability, claims, charges, or causes of action which I may have as a result of the delivery or disclosure of the above requested information. I hereby release from liability the Company and its representative for seeking such information and all other persons, corporations, or organizations furnishing such information. Further, if hired, I authorize the company to provide truthful information concerning my employment to future employers and hold the company harmless for providing such information.

If hired by this Company, I understand that I will be required to provide genuine documentation establishing my identity and eligibility to be legally employed in the United States by this Company. I also understand this Company employs only individuals who are legally eligible to work in the United States.

THIS APPLICATION WILL BE CONSIDERED ACTIVE FOR A MAXIMUM OF SIXTY (60) DAYS. IF YOU WISH TO BE CONSIDERED FOR EMPLOYMENT AFTER THAT TIME, YOU MUST REAPPLY.

I CERTIFY THAT ALL OF THE INFORMATION THAT I HAVE PROVIDED ON THIS APPLICATION IS TRUE, ACCURATE, AND COMPLETE.

DO NOT SIGN UNTIL YOU HAVE READ ALL OF THE INFORMATION CONTAINED IN THE APPLICATION.

Applicant Signature  **Date** 1 / 18 / 22

If the applicant is a minor, the foregoing release and consent must be signed by the applicant's parent or legal guardian. Signature by the applicant's parent or legal guardian constitutes acknowledgement by the applicant and the parent or legal guardian that the Company, to the extent permitted by federal, state, and local law, can test the applicant for illegal or controlled substances, conduct inspections of property without notice, and communicate test results to Company personnel who need to know, the applicant, and the applicant's legal guardian.

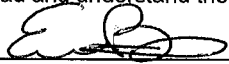
Parent/Legal Guardian

Witness

Date

Date

UNDER MARYLAND LAW, AN EMPLOYER MAY NOT REQUIRE OR DEMAND, AS A CONDITION OF EMPLOYMENT, PROSPECTIVE EMPLOYMENT, OR CONTINUED EMPLOYMENT, THAT AN INDIVIDUAL SUBMIT TO OR TAKE A LIE DETECTOR, POLYGRAPH, OR SIMILAR TEST. AN EMPLOYER WHO VIOLATES THIS LAW IS GUILTY OF A MISDEMEANOR AND SUBJECT TO A FINE NOT EXCEEDING \$100. I have read and understand the above statement.

Applicant Signature  **Date** 1 / 18 / 22

IT IS UNLAWFUL IN MASSACHUSETTS TO REQUIRE OR ADMINISTER A LIE DETECTOR TEST AS A CONDITION OF EMPLOYMENT OR CONTINUED EMPLOYMENT. AN EMPLOYER WHO VIOLATES THIS LAW SHALL BE SUBJECT TO CRIMINAL PENALTIES AND CIVIL LIABILITY.

FOR CALIFORNIA APPLICANTS ONLY: BY CHECKING THIS BOX, I WAIVE MY RIGHT TO RECEIVE A COPY OF ANY PUBLIC RECORD OBTAINED BY THE COMPANY FOR EMPLOYMENT PURPOSES THROUGH AN INTERNAL INVESTIGATION. ☐

FEDERAL AND/OR STATE LAW MAY PROHIBIT THE USE OF LIE DETECTOR, POLYGRAPH OR SIMILAR TEST AS WELL.

THIS APPLICATION MAY NOT BE SUFFICIENT FOR ALL INDUSTRIES OR APPROPRIATE FOR USE IN ALL LOCALITIES.

*This employment application not appropriate for use by Rhode Island employers exempt from the state's Workers' Compensation laws.



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JOB DESCRIPTION

Job Title: Warehouse Delivery Driver
FLSA Status: Non-Exempt/Full-Time
Reports To: Branch Manager

Position Summary:

Working at the direction of the Branch Manager, the warehouse delivery driver is responsible for providing support to the warehousing operations with specific responsibilities of transporting orders over designated routes; ensuring safe operation of vehicles; and loading and unloading orders.

Subordinate Summary:

This position has no formal supervisory responsibilities.

Essential Job Results and Responsibilities:

Core Duties and Responsibilities

1. Assists in receiving stock and nonstock items for the purpose of ensuring specifications, quantity and quality of orders are correct.
2. Cleans warehouse for the purpose of maintaining a safe and sanitary work area.
3. Delivers a variety of materials primarily to customers for the purpose of distributing inventory from internal or external sources over scheduled and/or unscheduled routes to assigned locations and/or individuals.
4. Drives vehicles (e.g. truck, van, forklift, etc.) for the purpose of transporting orders and materials to designated sites.
5. Loads and unloads delivery trucks for the purpose of receiving stock and/or filling orders for transport.
6. Maintains delivery vehicles (e.g. checking fluid levels, fueling, cleaning, etc.) for the purpose of ensuring safe operation of vehicle.
7. Maintains records (e.g. delivery log, etc.) for the purpose of documenting activities and providing reliable resource information.
8. Participates in physical inventories for the purpose of verifying stock and identifying losses.
9. Performs all functions within the scope of the warehouse for the purpose of providing warehousing operations.
10. Prepares orders by pulling from stock for the purpose of meeting delivery requirements.

Johnstone Supply of Central NY provides equal employment opportunities to all employees and applicants for employment and prohibits discrimination and harassment of any type without regard to race, color, religion, age, sex, national origin, disability status, genetics, protected veteran status, sexual orientation, gender identity or expression, or any other characteristic protected by federal, state or local laws. This policy applies to all terms and conditions of employment, including recruiting, hiring, placement, promotion, termination, layoff, recall, transfers, leaves of absence, compensation and training.

Job Description- Warehouse Delivery Driver- continued

11. Transports a variety of items for the purpose of receiving and/or delivering materials on both scheduled and unscheduled pickup and delivery routes.
12. Other duties as many be assigned.

Customer Service Results and Responsibilities

1. Assist sales efforts on an as needed basis including but not limited to assisting in-store customers, filling customer orders, delivery to customers, and answering telephones.
2. Answers incoming telephone calls and emails and greets customers who walk in the store. Handles multiple customers and customer requests simultaneously while maintaining a friendly and professional manner.
3. Follows up promptly on all customer requests for information, quotes, alternative parts and delivery dates. Proactively communicates with customers about any expected delays or issues with their order.
4. Develops good working relationships and rapport with customers. Greets regular customers by name.
5. Maintains the highest standards in cleanliness and appearance of the showroom through stocking shelves, housekeeping, creating displays, etc.

General Results Responsibilities

1. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from experienced staff members and factory representatives.
2. Is organized and orderly, and capable of maintaining appropriate records.
3. Completes all transactions and necessary paperwork accurately and in a timely manner.
4. May represent Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Education and Experience:

- Required: High School Diploma or G.E.D and minimum of two years related experience and/or training in material handling of durable goods including hazardous materials; OR equivalent combination of education and experience.
- Preferred: The above plus 2 years experience with a wholesale HVAC/R or similar industry.

Job-Specific Knowledge, Skills & Abilities

- Ability to provide consistent, professional customer service.
- Problem-solving skills: listening to, interpreting, and meeting the needs of others; diagnosing and rectifying problems that will often require attention to detail.
- Ability to maintain a positive, courteous, and friendly demeanor.

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Job Description- Warehouse Delivery Driver- continued

- General knowledge in the safe handling of durable goods including hazardous materials.
- Skill in the safe use of material handling equipment.
- Skill in proactively communicating (both verbal and written) to establish mutual respect and understanding.
- Math skills, including ability to: add, subtract, multiply, divide; and calculate margins, discounts and percentages.
- Skill in using point-of-sale computer systems to locate information and process transactions.
- Skill in using web-based tools to research product and information.
- Ability to work productively in teams with a wide range of people.
- Ability to work independently with minimal direction.
- Ability to follow written instructions and documented procedures.

Expected Work Behaviors:

- Keeps the company's best interest in mind when considering or addressing issues.
- Dedication to attending work and work-related functions prepared and on time.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to safety, safe handling of materials, and service quality.

Physical Demands & Work Environment:

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical: While performing the duties of this job, the employee is required to either stand and walk on a hard surface or drive a delivery vehicle and load or unload the truck for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch, or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision, depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required.

Store Environment: Medium to large store with shelves and bins, most work is performed with telephone, material handling equipment, computer, fax, printer, and in some cases an RF scanner.

Skills Summary:

Safe Driving Skills

Oral Communications Skills

Energetic

Ability to lift up to 70 pounds

Time Management

Math Aptitude

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Job Description- Warehouse Delivery Driver- continued

Computer Skills

Sales Aptitude

Organizational Skills

Mechanical Skills

Technical Skills

Problem-solving Skills

Diplomacy

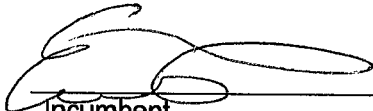
Interpersonal & Telephone Skills

Reading Skills

Written Communication Skills

The Warehouse Delivery Driver will maintain the strictest confidentiality on all corporate matters including, but not limited to marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved:


Incumbent

1/11/22
Date

Supervisor

Date

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Employee Information Form

Employer to Complete

Client Number H1J

Date 1/18/2022

- Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number _____ Department Number 141

Job Title Warehouse Delivery Driver

Hire Date 1/18/22

Birth Date 6/25/1988

Workers' Compensation Class Code 7999 ☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) _____

OR

Hourly Rate 1 \$ 20.00 Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 0 Additional \$ 0 Flat \$ 0

What state does this employee work in? NYS

What state should be withholding for this employer? NYS

State Exemptions 1 Additional \$ 0 Flat \$ 0

Are local taxes required? ☐ Yes - Town/City/County _____ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Bermudez First Name Erick Initial J

Address 135 Parkwood Rd County Monroe

City Rochester State NY Zip Code 14615

Telephone Number (585) 746-0493 Sex ☒ Male ☐ Female

Work E-mail Address erickbermudez96@yahoo.com

Personal E-mail Address (optional) _____

Marital Status ☒ Single ☐ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 599-16-6762

Emergency Contact Information

Name Lynn Adams Relationship Good mother

Emergency Telephone (585) 746-0607



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Hourly Rate Employees

1. Employer Information

Name:

The KL Group, Inc

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse
FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

3. Employee's rate of pay:

\$ 20.00 per hour

4. Allowances taken:

☒ None

☐ Tips _____ per hour

☐ Meals _____ per meal

☐ Lodging _____

☐ Other _____

5. Regular payday: Friday

6. Pay is:

☐ Weekly

☒ Bi-weekly

☐ Other

7. Overtime Pay Rate:

\$ 0.00 per hour (This must be at least
1½ times the worker's regular rate with
few exceptions.)

8. Employee Acknowledgement:

On this day I have been notified of my pay rate, overtime rate (if eligible), allowances, and designated pay day on the date given below. I told my employer what my primary language is.

Check one:

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is _____. I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

Print Employee Name Eric Bernick

Employee Signature [Signature]

Date 1/18/22

Kenneth Livingston, President

Preparer's Name and Title

The employee must receive a signed copy of this form. The employer must keep the original for 6 years.

Please note: It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

Employee's Withholding Certificate

OMB No. 1545-0074

▶ **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**▶ **Give Form W-4 to your employer.**▶ **Your withholding is subject to review by the IRS.****2022****Step 1:
Enter
Personal
Information**

(a) First name and middle initial

Erick

Last name

Bermudez

(b) Social security number

599-16-6762

Address

135 Parkwood Rd

City or town, state, and ZIP code

Rochester NY 14615

▶ **Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to www.ssa.gov.**(c) ☒ **Single or Married filing separately**☐ **Married filing jointly or Qualifying widow(er)**☐ **Head of household** (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.)**Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5.** See page 2 for more information on each step, who can claim exemption from withholding, when to use the estimator at www.irs.gov/W4App, and privacy.**Step 2:
Multiple Jobs
or Spouse
Works**

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.(a) Use the estimator at www.irs.gov/W4App for most accurate withholding for this step (and Steps 3-4); **or**(b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; **or**(c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld . . . ▶ ☐**TIP:** To be accurate, submit a 2022 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.**Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs.** Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)**Step 3:
Claim
Dependents**

If your total income will be \$200,000 or less (\$400,000 or less if married filing jointly):

Multiply the number of qualifying children under age 17 by \$2,000 ▶ \$ 0

Multiply the number of other dependents by \$500 . . . ▶ \$ 0

Add the amounts above and enter the total here

3 \$ 0**Step 4
(optional):
Other
Adjustments**(a) **Other income (not from jobs).** If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income**4(a)** \$ 0(b) **Deductions.** If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here**4(b)** \$ 0(c) **Extra withholding.** Enter any additional tax you want withheld each pay period . . .**4(c)** \$ 0**Step 5:
Sign
Here**

Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.

**Employee's signature** (This form is not valid unless you sign it.)**Date**

1/18/22

**Employers
Only**

Employer's name and address

First date of
employmentEmployer identification
number (EIN)



Department of Taxation and Finance

Employee's Withholding Allowance Certificate

New York State • New York City • Yonkers

IT-2104

First name and middle initial Erick		Last name Bermuller		Your Social Security number 599-16-6762	
Permanent home address (number and street or rural route) 135 Parkwood Rd			Apartment number		Single or Head of household ☒ Married ☐
City, village, or post office Rochester			State NY	ZIP code 14615	Married, but withhold at higher single rate ☐
Note: If married but legally separated, mark an X in the Single or Head of household box.					
Are you a resident of New York City? Yes ☐ No ☒					
Are you a resident of Yonkers? Yes ☐ No ☒					
Complete the worksheet on page 4 before making any entries.					
1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 19)				1	0
2 Total number of allowances for New York City (from line 31)				2	0
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.					
3 New York State amount				3	1
4 New York City amount				4	0
5 Yonkers amount				5	0

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature 	Date 1/18/22
--------------------------	------------------------

Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.**Employee: detach this page and give it to your employer; keep a copy for your records.****Employer: Keep this certificate with your records.**

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

- A Employee claimed more than 14 exemption allowances for NYS A ☐
- B Employee is a new hire or a rehire ... B ☒ First date employee performed services for pay (mm-dd-yyyy) (see instr.): **1/15/22**

Are dependent health insurance benefits available for this employee? Yes ☐ No ☐If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number
--	--------------------------------

Instructions**Important information**

The 2021-2022 New York State budget was signed into law on April 19, 2021. Changes to New York State personal income tax have caused withholding tax changes for taxpayers with taxable income:

- more than \$2,155,350, and who are married filing jointly or a qualified widow(er);
- more than \$1,077,550, and who are single or married filing separately; or
- more than \$1,616,450, and who are head of household.

Accordingly, if you previously filed a Form IT-2104 and earn more than the amounts listed above, you should complete a new 2022 Form IT-2104 and give it to your employer.

Changes effective for 2022

Form IT-2104 has been revised for tax year 2022. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2022 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you did not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in federal and New York State tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or

POST-OFFER SELF-IDENTIFICATION FORM

Name: Erick Bermudez Date: 1/18/22

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☒ Male ☐ Female

RACE/ETHNICITY:

Are you Hispanic or Latino? Yes ☒ No ☐

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- | | |
|---|--|
| ☐ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | ☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- | | |
|---|---|
| ☐ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | |

VETERAN STATUS: (Check all that apply)

- ☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.
- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.
- Enter Date of Separation: _____
- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.

Employee Name: Erick Bermudez

Company Name: _____

EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 121 000 248 Account #: 2211 8157 4143 01495

Account Type: (Select Only One)

☒ Checking

☐ Savings

☐ Checking (HSA) Single

☐ Checking (HSA) Family

Deposit Options: (Select Only One)

☒ Deposit ENTIRE Net Pay Amount

☐ Deposit \$ _____ of Net Pay Each Pay Period

☐ Deposit _____ % of Net Pay Each Pay Period

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: erickbermudez96@yahoo.com

Employee Signature: _____

Date: 1/18/22

(Please Complete One Form for Each Deposit Request)



2022 Benefits Overview * Employee

Benefit	Description	Employee Contribution	Vestment Period
Health Insurance (Premium Only Plan – Section 125)	Excellus SimplyBlue Plus Gold 21 Company covers 50% of the equivalent Silver 19 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,600 single/\$4,000 family	Balance of premium costs <u>not</u> covered by the Company plus applicable out of pocket annual maximum of \$6,000 single/ \$12,000 family less employer provided HRA	Upon the completion of ninety (90) days
	Excellus SimplyBlue Silver 19 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus co-pays up to annual out of pocket maximum of \$6,750 single/ \$13,500 family less supplemental employer provided	Upon the completion of ninety (90) days
	Excellus SimplyBlue Plus Bronze 4 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus applicable out of pocket annual maximum of \$7,000 single/ \$14,000 family less employer provided HRA	Upon the completion of ninety (90) days
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval	Any portion over company contribution	Upon the completion of ninety (90) days
Employee Assistance Program (EAP)	NextGen EAP a fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance	N/A	Upon the completion of ninety (90) days
Flexible Spending Account (Section 125-offered through Benefit Resource Inc.)	Flexible Spending Accounts are IRS-approved pre-tax accounts to help pay out-of-pocket medical, dental, vision, prescription drug and dependent care expenses not covered by other company insurance benefits	Voluntary contribution up to \$2,750 annually for medical; \$5,000 dependent care deduction	Upon the completion of ninety (90) days
Supplemental Short-Term Disability (offered through AFLAC)	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work <i>This benefit supplements coverage for which you are entitled under NYS Disability Law</i>	100%	First of the month following ninety (90) days

Rochester
Syracuse
Lyons



Personal Accident Insurance <i>(Premium Only Plan- Section 125) offered through AFLAC</i>	Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.	100%	First of the month following ninety (90) days
Personal Cancer Insurance <i>(Premium Only Plan- Section 125) offered through AFLAC</i>	Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical	100%	First of the month following ninety (90) days
Dental & Vision Insurance <i>(Premium Only Plan- Section 125- offered through Guardian)</i>	Pre-tax coverage of dental and vision expenditures for you and/or your family	100%	Upon the completion of ninety (90) days
Group Term Life Insurance and AD&D Coverage <i>(offered through Mutual of Omaha)</i>	Life insurance coverage for you of \$50,000 Accidental Death & Dismemberment coverage for you of \$50,000. You can elect supplemental term life insurance in increments of \$10,000 up to a maximum of 5 times your annual salary	100% for supplemental term life coverage Spousal and Child(ren) insurance available	First of the month following ninety (90) days
National Holidays	6 paid days annually; New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day	N/A	None
Paid Time Off	10 Days per year - weeks are not to be taken consecutively	N/A	First of the month following six (6) months service, prorated during first year of employment
	Additional 11 th PTO day in recognition of your birthday; to be used during the month of your birthday	N/A	11 th PTO day eligible after 3 years of service

Rochester
Syracuse
Lyons



PTO @ 5 Years	Additional 4 days of PTO in recognition of your years of service	N/A	Four (4) additional days of PTO eligible after five (5) years of service
NY Paid Sick Leave	40 hours of Paid Sick Leave annually	N/A	Accrual of one (1) hour of Paid Sick Leave for every thirty (30) hours worked
Tuition Reimbursement†	Company will pay up to 100% of tuition for job-related courses subject to prior approval	Any portion over company contribution.	One (1) year
Savings and Investment Plan	401K defined contribution plan		One (1) year, over 21 years of age, and works more than 1000 hours per year
	Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:		
	Employee Contribution	Employer Match	
	1%	1%	
	2%	2%	
	3%	3%	
	4%	3.5%	
5%	4%		
		Deferral of up to 25% of annual gross wages but not to exceed \$19,500	
		Additional \$6,500 catch-up contribution for employees aged 50 and over	
		Pre-tax and after-tax (Roth) programs available.	

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

* Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

**Rochester
Syracuse
Lyons**

Employee Signature

Name of Employee (please print)

Eric Bermudez

Date

1/11/22

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of Johnstone Supply of Central NY's Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that JSCNY has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, supervisor, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the President of JSCNY. I also understand that any delay or failure by JSCNY to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of JSCNY or effect the right of JSCNY to enforce such rule, regulation, or procedure in the future.

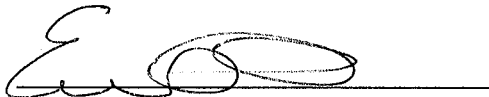
I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized JSCNY representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement signed by the President or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

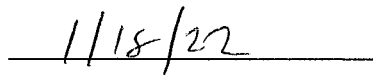
This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by Johnstone Supply of Central NY.

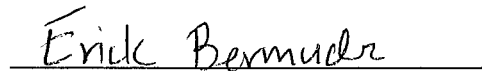
If I have any questions about the content or interpretation of this handbook, I will contact my supervisor.



Signature



Date



Print Name

Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation, or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated, and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Erick Bermudez

Employee's Signature: 

Position: Driver

Date: 1/18/22

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

Sexual Harassment Prevention Policy

example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: _____

Print Name: _____

Erick Bermudez

Date: _____

1/18/22



JOHNSTONE SUPPLY

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Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



JOHNSTONE SUPPLY

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eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Erick Bermudez

Employee Name

[Signature]

Employee Signature

1/18/22

Date



JOHNSTONE SUPPLY

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Toll Free: (800) 724-8806
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eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE CONFIDENTIALITY AGREEMENT

As a Member of **JOHNSTONE SUPPLY, Inc.** (the "Cooperative"), **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, is bound by the terms of the Bylaws of the Cooperative, and Patronage Agreement in place between our company and the Cooperative. Under these Bylaws and Patronage Agreement, we are prohibited from discussing, indicating, or disclosing all correspondences, documents, price information and other materials furnished to us by the Cooperative (other than those sales materials designated by the Cooperative for our customers) ("Confidential Information"). For example, we cannot discuss with or disclose to customers or vendors the costs for which we obtain products from the Cooperative or our vendors, or the terms of the specific programs we have with the Cooperative or these vendors. Such disclosure is grounds for termination of our Membership with the Cooperative and may make us liable for any damages as a result of a breach of confidentiality.

As employees of **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, we must conduct ourselves accordingly to protect the security and confidentiality of all such Confidential Information. Any breach of confidentiality by an employee is grounds for termination in accordance with company procedures. Following are the rules of conduct regarding confidentiality:

1. Never discuss our costs for products with anyone outside the company. If you are asked, merely say, "I don't know".
2. Never leave any publications, letters, or written material that discloses our costs, terms, or other Confidential Information anywhere other than in a secure place on the business premises.
3. No copies, electronic or paper, are to be made of any Confidential Information under any circumstances.
4. Never disclose quantities of merchandise that we purchase.
5. No employee is to accept any gifts, gratuities, or other incentives from any vendor, at any time.

Upon termination of employment, employees must return all documentation developed or acquired in the course of employment, including all copies of Confidential Information. This includes cost and program information from vendors, mailing lists, customer lists, accounting data, or any other material that has been deemed confidential.

I understand and agree to the terms of the confidentiality policy of **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**.



Employee



Ann Maynard

1/15/22

Date

1/18/22

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
T: (585) 482-8000 • F: (585) 482-6000
E: ROCSales@JohnstoneHVAC-NY.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
T: (315) 479-8800 • F: (315) 479-8600
E: SYRSales@JohnstoneHVAC-NY.com

Order on-line at www.JohnstoneSupply.com/store141

AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the landed cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only. Immediate family include spouses, domestic partners, children, parents, brothers, sisters, nieces, nephews, grandparents, grandparents-in-law, parents-in-law, brothers-in-law, sisters-in-law, sons-in-law, daughters-in-law, stepparents, stepchildren, and stepparents-in-law.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.


Employee

1/18/22
Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

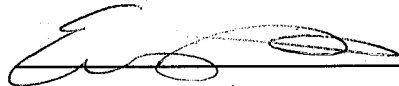
Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE ACCOUNT APPLICATION

Employee Name: Erick Bermudez
Address: 135 Parkwood Rd
Address 2: _____
City/ST/Zip: Rochester NY 14615
County: Monroe
Phone: 585-746-0493 Fax #: _____
Cell #: _____ Other #: _____
Email Address: erickbermudez96@yahoo.com
I, Erick Bermudez SS# 599-16-6762
OR Driver's License # _____

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: 
Date: 1/18/22

"National Supplier to the Service Industry Since 1953"